

rule of the Bank not to allow stock to be transferred into the names of more than four joint proprietors. But in *special* cases so many as five or six have been admitted.

SECTION III.

WHO MAY BE CESTUI QUE TRUST.

1. It may be laid down as a general rule that as *æquitas sequitur legem*, those who are capable of taking the legal estate, may, through the channel of trust, be made recipients of the equitable.

2. **The Crown may be cestui qui trust.**—A trust may be declared in favour of the *Sovereign*.¹ While uses were in their fiduciary state, it was held that in order effectually to limit a use to the Crown, the title must have been matter of record. "It behoveth," says Lord Bacon, "that both the declaration of the use and the conveyance itself be matter of record, because the king's title is compounded of both; I say not appearing of record, but by conveyance of record. And, therefore, if I covenant with J. S. to levy a fine to him to the king's use, which I do accordingly, and the *deed of covenant be not enrolled*, and the deed be found by office, the use vesteth not. *E converso*, if enrolled. If I covenant with J. S. to enfeoff him to the king's use, and the deed be enrolled and the feoffment also be found by office, the *use vesteth. But if I levy a fine, or suffer a [*44] recovery to the king's use, and declare the use by deed of covenant enrolled, though the king be not a party, yet it is good enough" (a). These observations apply only to original gifts of land from a subject to the Crown, and, when the limits of the prerogative were much less accurately defined than they now are, the interposition of such a barrier between the subject and the Crown may have been necessary. Where an equitable interest in real or personal estate (b)

(a) Bac. on Uses, 60; and see Gilb. on Uses, 44, 204.

(b) Middleton v. Spicer, 1 B. C. C. 201; Brummell v. Macpherson, 5 Russ. 263.

¹ A state may be a *cestui que trust*. Lamar v. Simpson, 1 Rich. Eq. 71; Neilson v. Lagow, 12 How. 107.